

1-3 Kifisias Ave., 11523 Athens
T: 210 6475 600 • E: contact@dpa.gr • www.dpa.gr

Athens, 24-07-2023

Ref. No.: 1973

Decision of the President of the Authority No. 28/2023
(Single-member body – Interim Order)

The President of the Authority, as a single-member body pursuant to Article 17 par. 1 of Law 4624/2019 (Government Gazette A' 137), within the framework of the powers provided in Articles 4 par. 3(a) and 10 par. 4 of the Operating Regulation of the Authority (Government Gazette B' 879/25.02.2022) and the powers provided in Article 15 par. 8 of Law 4624/2019 in conjunction with Article 58 par. 2(e) of Regulation (EU) 2016/679 (GDPR), examined the case referred to below in the background of this decision.

The Authority took into account the following:

1. Whereas, with the complaint Ref. No. G/EIS/4615/20-06-2023, A (hereinafter referred to as the complainant) informed the Authority of an incident of personal data breach by the Municipality of X. According to the aforementioned complaint, files containing personal data of residents of the Municipality of X were easily accessible by any user through the website "...", by changing the last five-digit number appearing in the relevant electronic (URL) address. Following an oral notification to the Municipality of X by the Authority on 21-06-2023, the Municipality immediately ceased the operation of the website and subsequently submitted the notification of the personal data breach incident to the Authority under Ref. No. G/EIS/4715/23-06-2023, while also providing the Authority with some clarifications regarding the incident in its letter Ref. No. G/EIS/4747/26-06-2023, stating among other things that, to address the issue, the ID that each file possesses would no longer be required for retrieval from the website, but rather the GUID.
2. Whereas the Authority is examining both the aforementioned complaint and is also ex officio investigating the incident of personal data breach and the related processing of personal data. In this context, the Authority sent the Municipality the letter Ref. No. G/EXE/1649/27-06-2023, requesting further clarifications regarding the incident.
3. Whereas on 03-07-2023, despite the corrective actions that had been taken according to the Municipality's claims, the aforementioned website became available again, and the files were once again easily accessible in exactly the same manner, as pointed out by the complainant in a subsequent letter (Ref. No. G/EIS/4916/03-07-2023) and confirmed by the Authority. Following a new telephone notification to the Municipality by the Authority regarding this issue, the Municipality of X again ceased the operation of the aforementioned website on 03-07-2023. Subsequently, the Municipality provided its views to the Authority again with its letter Ref. No. G/EIS/5144/12-07-2023, responding to some of the questions raised in the aforementioned letter G/EXE/1649/27-06-2023 from the Authority.
4. Whereas after the Municipality of X's latest clarifications, and given that various significant aspects of the incident remain unclear, the Authority sent a new letter to the Municipality with new, more specific questions (Ref. No. G/EXE/1783/13-07-2023), to which it has not yet received responses.
5. Whereas on 19-07-2023, while supplementary clarifications from the Municipality of X are still pending, the website became available again, and despite the corrective actions it claims to have taken since its letter dated 26-06-2023, the files are again – as was the case on 03-07-2023 – easily accessible in exactly the same manner.
6. Whereas the Authority has the authority based on Article 15 par. 8 of Law 4624/2019 in conjunction with Article 58 par. 2(e) of the GDPR to issue an interim order for an immediate total or partial, temporary restriction of processing ex officio.
7. Whereas the collection, storage, use, dissemination, or any other form of disposal of personal data constitutes a form of processing based on Article 4(2) of the GDPR.
8. Whereas in this specific case, from the aforementioned incident of breach, which results in files containing personal data of residents of the Municipality of X being easily accessible by any user of the

Municipality's website, high risks arise for a large number of individuals.

FOR THESE REASONS

THE AUTHORITY

Orders the Municipality of X to take all necessary actions to restrict the free access of internet users to files containing personal data on the aforementioned website and to ensure that, if the relevant application is operational, files containing personal data of users are available only to appropriately authorized users or to the data subjects themselves, without being easily accessible by other internet users in the manner described in the background of this decision, until a new decision is issued by the Authority.

The President

Konstantinos Menoudakos